

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS WRIGHT ELECTRO
MECHANICAL CORP. d/b/a Curtiss-
Wright Steam and Air Solutions,
STEPHANIE LANIER, and SHANE
SABLOTSKY,

Defendants.

Case No. 2:25-cv-00405-RMG-MGB

ORDER

Plaintiff, through counsel, initially filed this employment discrimination action in state court. (Dkt. No. 1-1.) Defendants removed the case to this Court on January 21, 2025. (Dkt. No. 1.) Shortly thereafter, Plaintiff's counsel withdrew. (Dkt. Nos. 10, 11, 12, 13, 19.) Plaintiff is now proceeding *pro se*.

This case was automatically referred to the undersigned United States Magistrate Judge for all pretrial proceedings pursuant to the provisions of 28 U.S.C. § 636(b)(1)(A) and (B) and Local Rule 73.02(B)(2)(g), D.S.C. Currently before the Court are various discovery motions, including a Motion to Compel (Dkt. No. 103) and Renewed Motion to Compel (Dkt. No. 173) filed by Plaintiff, and a Motion for Protective Order filed by nonparty Apple Inc. ("Apple") (Dkt. No. 129). For the reasons set forth below, the undersigned **DENIES** Plaintiff's Motions to Compel (Dkt. Nos. 103, 173) and **GRANTS** Apple's Motion for Protective Order (Dkt. No. 129).

DISCUSSION

Plaintiff filed the first Motion to Compel at issue (Dkt. No. 103) on September 12, 2025, and the second Motion to Compel at issue (Dkt. No. 173) on October 10, 2025. Both Motions

pertain to an August 29, 2025 subpoena directed to Apple in which Plaintiff requested that Apple produce “account and device-level technical logs relevant to Plaintiff’s claims of cyber intrusion and unauthorized access.” (*See generally* Dkt. Nos. 103, 173.) More specifically, the subpoena requested “[f]or the time period of August 1, 2023, to the present,” the following information pertaining to Plaintiff’s Apple ID and telephone numbers:

1. All logs, technical reports, and records of unauthorized or remote access to Plaintiff’s Apple devices (including iPhones, iPads, and MacBooks) . . .
2. All logs of Personal Identification Number (PIN) unlock attempts, system overrides, and remote activations or commands sent to the devices.
3. Complete documentation of any and all agreements, policies, or procedures with government agencies or third parties that permit or facilitate access to device firmware or user data
4. All logs of system-wake or power-on events that occurred without direct user interaction or scheduled automated tasks.
5. All records of any “Find My” or similar location-tracking services being activated or accessed remotely

(Dkt. No. 103-1 at 3.)

Plaintiff’s first Motion to Compel asks the Court to compel Apple to comply with the subpoena, to “produce all documents and electronically stored information” requested, and to “[o]rder Apple to preserve all responsive logs and records pending production.” (Dkt. No. 103 at 2; *see also* Dkt. No. 115.) Plaintiff’s Renewed Motion to Compel asks the Court to “order [Apple] to produce all documents and electronically stored information responsive to Plaintiff’s subpoena, including records and logs dated after August 27, 2023, particularly those surrounding [a] September 10, 2025 incident.” (Dkt. No. 173 at 3.) Plaintiff’s Renewed Motion to Compel also asks the Court to “[r]equire Apple to certify that all responsive materials have been produced,” and to “[a]ward Plaintiff reasonable expenses and costs incurred in making this motion” (*Id.*)

At the outset, the undersigned notes that Plaintiff filed her first Motion to Compel before Apple's response to the August 29, 2025 subpoena was due. (*See generally* Dkt. Nos. 103, 128, 128-1.) Plaintiff's first Motion to Compel (Dkt. No. 103) is therefore **DENIED** as premature.

Plaintiff's Renewed Motion to Compel (Dkt. No. 173) is also **DENIED**. The record makes clear that Apple fully complied with Plaintiff's subpoena on September 23, 2025, producing responsive records where able and otherwise confirming that Apple does not possess records responsive to certain of Plaintiff's requests. (*See generally* Dkt. Nos. 128-1, 128-2.)

Plaintiff nonetheless takes issue with Apple's response to her subpoena because Apple's production purportedly "ends on August 27, 2023—almost a year before the subpoena was served—and omits critical data for the period in which Plaintiff's iPhone experienced repeated system overrides and remote activations, including [a] September 10, 2025 incident reported directly to Apple." (Dkt. No. 173 at 1.) However, as Apple correctly notes, Apple's production "contained records as recent as August 23, 2025 and August 14, 2025," and Plaintiff never requested that Apple produce records pertaining to a "September 10, 2025 incident." (Dkt. No. 174 at 4–5; *see also* Dkt. Nos. 103-1, 174-2.)

Further, the record indicates that Apple likely does not have the information Plaintiff seeks regarding the alleged "September 10, 2025 incident." (*See generally* Dkt. No. 128-1.) As this Court has repeatedly informed Plaintiff, it cannot compel entities to furnish information they do not possess. *See, e.g., Moore v. BPS Direct, LLC*, No. 2:17-CV-3228-RMG, 2019 WL 2912490, at *2 (D.S.C. July 8, 2019) ("It is axiomatic that a party cannot be ordered to produce documents that do not exist."); *Jackson v. Wade*, No. 1:20-CV-114 (LMB/IDD), 2021 WL 1536578, at *5 (E.D. Va. Apr. 19, 2021), *appeal dismissed*, 2021 WL 5447601 (4th Cir. Nov. 22, 2021) ("[A] subpoena can only direct an individual or entity to produce materials in their 'possession, custody, or

control,’ and thus cannot compel an entity to create a new document . . . out of whole cloth.”). Accordingly, Plaintiff’s Renewed Motion to Compel (Dkt. No. 173) is **DENIED**.

For similar reasons, Apple’s Motion for Protective Order (Dkt. No. 129) is **GRANTED**. As the Court has previously explained, Federal Rule of Civil Procedure 45 imposes stricter limitations on discovery sought from nonparties. Indeed, “[a] more demanding variant of the proportionality analysis [] applies when determining whether, under Rule 45, a subpoena issued against a nonparty ‘subjects a person to undue burden’ and must be quashed or modified.” *Virginia Dep’t of Corr. v. Jordan*, 921 F.3d 180, 189 (4th Cir. 2019) (quoting Fed. R. Civ. P. 45(d)(3)(A)(iv)). This is so because “[b]ystanders should not be drawn into the parties’ dispute without some good reason, even if they have information that falls within the scope of party discovery.” *Id.* A subpoena subjects a nonparty to undue burden if it “seeks information irrelevant to the case or that would require [the] non-party to incur excessive expenditure of time or money.” *Cook v. Howard*, 484 F. App’x 805, 812 n.7 (4th Cir. 2012).

Courts also consider the general discovery standards in Federal Rule of Civil Procedure 26 when determining the limits to impose on discovery sought from a nonparty. *Id.* at 812 (“Although Rule 45(c) sets forth additional grounds on which a subpoena against a third party may be quashed, taking into consideration facts peculiar to their status as a non-party, those factors are co-extensive with the general rules governing all discovery that are set forth in Rule 26.”); *see also Jordan*, 921 F.3d at 189 (“As under Rule 26, the ultimate question is whether the benefits of discovery to the requesting party outweigh the burdens on the recipient.”). For example, courts will allow “[a] party or any person from whom discovery is sought [to] move for a protective order in the court where the action is pending. . . . [and may], for good cause, issue an order to protect a party or person

from annoyance, embarrassment, oppression, or undue burden and expense” by forbidding or limiting the scope of discovery. Fed. R. Civ. P. 26(c)(1).

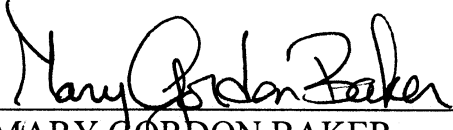
Here, Plaintiff’s persistent filing of premature and/or frivolous discovery motions has subjected Apple to the very type of “undue burden and expense” Federal Rule of Civil Procedure 26(c)(1) seeks to curtail. Apple has submitted evidence indicating that it promptly and fully complied with the subpoena it received from Plaintiff, and that Apple’s attorneys and representatives have consistently worked with Plaintiff to resolve her qualms without involving the Court. Nonetheless, Plaintiff has taken issue with Apple’s production at every turn and has failed to reasonably resolve her issues with Apple directly. Thus, Apple has been forced to incur additional expenses by appearing before this Court to litigate issues that could have been easily resolved out of Court. Against this background, the undersigned finds that Apple is entitled to a protective order prohibiting Plaintiff from issuing additional discovery requests to Apple in this case. Apple’s Motion for Protective Order (Dkt. No. 129) is therefore **GRANTED**.

CONCLUSION

For the foregoing reasons, Plaintiff’s Motion to Compel (Dkt. No. 103) and Renewed Motion to Compel (Dkt. No. 173) are **DENIED**, and Apple’s Motion for Protective Order (Dkt. No. 129) is **GRANTED**.

IT IS SO ORDERED.

October 21, 2025
Charleston, South Carolina



MARY GORDON BAKER
UNITED STATES MAGISTRATE JUDGE